



Mathew Tyler

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Plaintiff, *Pro per pro se*

Dated: March 27, 2025

UNITED STATES DISTRICT COURT

EASTERN DISTRICT OF CALIFORNIA

MATHEW TYLER,

Plaintiff,

v.

118TH US CONGRESS, et al.,

Defendants.

_____/

Case No. 2:2025cv00404

NOTICE OF PLAINTIFF'S OBJECTION AND MOTION TO STRIKE,

EXCLUDE, AND PREVENT ANY AND ALL GOVERNMENT

REPRESENTATION, ASSISTANCE, OR THE LIKE FROM THE

GOVERNMENT TO AND FOR DEFENDANTS

1 TO ALL PARTIES AND THEIR ATTORNEYS OF RECORD:

2 PLEASE TAKE NOTICE that Plaintiff Mathew Tyler, appearing Pro per pro se, hereby
3 moves this Court for an order striking, excluding, and preventing any and all government
4 representation, assistance, or the like from the government to and for Defendants in this
5 action. This motion is based on this Notice of Motion and Motion, the attached
6 Memorandum of Points and Authorities, all pleadings and papers on file in this action,
7 and upon such other matters as may be presented to the Court at the time of the hearing.

8 **MEMORANDUM OF POINTS AND AUTHORITIES**

9 **I. INTRODUCTION**

10 Plaintiff Mathew Tyler ("Plaintiff"), appearing Pro per pro se, respectfully submits this
11 Memorandum of Points and Authorities in support of his Motion to Strike, Exclude, and
12 Prevent Any and All Government Representation, Assistance, or the Like from the
13 Government to and for Defendants in this action. As set forth below, allowing
14 government representation of Defendants would create an impermissible conflict of
15 interest, violate Plaintiff's constitutional rights, contravene Plaintiff's rights as a crime
16 victim, undermine the integrity of these proceedings, and constitute an improper use of
17 public resources.

18 **II. FACTUAL BACKGROUND**

19 Plaintiff is a crime victim as defined by 18 U.S.C. § 3771 and California Constitution
20 Article 1 § 28. Specifically, Plaintiff meets the definition of a crime victim as codified by
21 34 U.S.C. § 20141(e)(2) and California Constitution Article 1 § 28(e). As such, Plaintiff

1 is entitled to certain rights and protections, including the right to be treated with fairness
2 and respect for his dignity and privacy, the right to proceedings free from unreasonable
3 delay, and the right to be reasonably protected from the accused.

4 **III. LEGAL ARGUMENT**

5 **A. Standard of Review**

6 As established in *Dunham v. Mohyuddin*, 2:23-CV-2757-DMC-P, (E.D. Cal. Jan. 29,
7 2025), "The Court must also construe the alleged facts in the light most favorable to the
8 plaintiff. See *Scheuer v. Rhodes*, 416 U.S. 232, 236 (1974); see also *Hosp. Bldg. Co. v.*
9 *Rex Hosp. Trustees*, 425 U.S. 738, 740 (1976); *Barnett v. Centoni*, 31 F.3d 813, 816 (9th
10 Cir. 1994) (per curiam). All ambiguities or doubts must also be resolved in the plaintiff's
11 favor. See *Jenkins v. McKeithen*, 395 U.S. 411, 421 (1969)."

12 Under this standard, this Court should construe the facts in the light most favorable to
13 Plaintiff and resolve any ambiguities in Plaintiff's favor when considering this motion.

14 Additionally, as evidenced by *Trump v. Anderson*, No. 23-719, 601 U.S. (2024), "It would
15 be incongruous to read this particular Amendment as granting the States the power —
16 silently no less — to disqualify a candidate for federal office." This establishes: (1) States
17 lack the power to disqualify a candidate for federal office and, (2) not including a
18 candidate on the ballot, even for a primary, would constitute disqualifying the candidate.

1 **B. The Government Has an Impermissible Conflict of Interest in Representing**
2 **Defendants**

3 The government's representation of Defendants in this action would create an
4 impermissible conflict of interest. As a crime victim, Plaintiff is entitled to protection of
5 his rights by the government. The government has a constitutional and statutory duty to
6 protect the rights of crime victims. See 18 U.S.C. § 3771(a) (enumerating the rights of
7 crime victims); Cal. Const. art. I, § 28(b) (same).

8 When the government represents parties accused of violating a victim's rights, it places
9 itself in the position of simultaneously protecting and potentially undermining those same
10 rights. This is the very definition of a conflict of interest. See *Young v. United States ex*
11 *rel. Vuitton et Fils S.A.*, 481 U.S. 787, 807 (1987) (recognizing that the government
12 cannot serve two masters with conflicting interests).

13 In *Berger v. United States*, 295 U.S. 78, 88 (1935), the Supreme Court emphasized that
14 the government's interest "is not that it shall win a case, but that justice shall be done."

15 When the government represents parties accused of violating a victim's rights, it puts
16 itself in a position where it may be advocating against justice for a crime victim, contrary
17 to its fundamental duty.

18 **C. The Supremacy Clause Mandates Protection of Plaintiff's Federal Rights**

19 Under the Supremacy Clause of the United States Constitution, federal law is "the
20 supreme Law of the Land." U.S. Const. art. VI, cl. 2. Federal law, including 18 U.S.C. §
21 3771 and 34 U.S.C. § 20141, establishes and protects the rights of crime victims. Any
22 state action, including the provision of government representation to Defendants, that

1 conflicts with or impedes these federal protections must yield to federal law. See *Gibbons*
2 *v. Ogden*, 22 U.S. 1 (1824); *McCulloch v. Maryland*, 17 U.S. 316 (1819).

3 The government's representation of Defendants would directly conflict with its federal
4 obligation to protect Plaintiff's rights as a crime victim, thus violating the Supremacy
5 Clause.

6 **D. Representation of Defendants Would Violate Due Process and Equal Protection**

7 The Fifth and Fourteenth Amendments guarantee that no person shall be deprived of
8 "life, liberty, or property, without due process of law." U.S. Const. amends. V, XIV.

9 Additionally, the Fourteenth Amendment guarantees "equal protection of the laws." U.S.
10 Const. amend. XIV.

11 Government representation of Defendants would violate these constitutional protections
12 in several ways:

13 1. **Due Process Violation:** By representing parties who allegedly violated Plaintiff's
14 rights, the government would deprive Plaintiff of his right to a fair and impartial
15 proceeding. See *Caperton v. A.T. Massey Coal Co.*, 556 U.S. 868 (2009)
16 (recognizing that due process requires an absence of actual bias or probability of
17 unfairness).

18 2. **Equal Protection Violation:** By using public resources to defend Defendants
19 while failing to adequately protect Plaintiff's rights, the government would treat
20 similarly situated individuals differently without a rational basis, in violation of
21 the Equal Protection Clause. See *City of Cleburne v. Cleburne Living Ctr.*, 473
22 U.S. 432, 439 (1985).

1 **3. Deprivation of Liberty Interests:** The government's representation of
2 Defendants would potentially deprive Plaintiff of fundamental liberty interests
3 protected by the Constitution, including the right to seek redress for wrongs. See
4 *Christopher v. Harbury*, 536 U.S. 403, 415 (2002) (recognizing the constitutional
5 dimension of the right of access to courts).

6 **E. The Doctrine of "Fruit of the Poisonous Tree" Applies**

7 The "fruit of the poisonous tree" doctrine holds that evidence obtained through illegal
8 means is inadmissible in court. See *Wong Sun v. United States*, 371 U.S. 471 (1963). By
9 extension, legal representation obtained through improper government action should
10 likewise be excluded.

11 If the government's representation of Defendants stems from or is connected to any
12 improper government action, such representation constitutes "fruit of the poisonous tree"
13 and should be excluded. See *Nardone v. United States*, 308 U.S. 338, 341 (1939)
14 (extending the exclusionary rule to evidence derived from illegal conduct).

15 **F. Misuse of Public Resources and Public Purse**

16 Government representation of Defendants would constitute an improper use of public
17 resources. Public funds—the "public purse"—should not be used to defend individuals
18 who have allegedly violated the rights of crime victims when such representation creates
19 a conflict of interest and undermines the government's duty to protect victims' rights.

20 Courts have consistently recognized limitations on the government's ability to expend
21 public funds in a manner contrary to the public interest. See *Hein v. Freedom From*
22 *Religion Foundation, Inc.*, 551 U.S. 587 (2007) (discussing limitations on the use of

public funds). Using public resources to represent Defendants in this case would contravene the public interest in protecting crime victims and ensuring the proper administration of justice.

G. Violation of Anti-Discrimination Laws

Providing government representation to Defendants while excluding Plaintiff from equal government services would violate various anti-discrimination laws, including:

1. 28 C.F.R. § 35.130(a), (d) (prohibiting discrimination on the basis of disability in public services);
2. 28 C.F.R. § 35.160(b)(1) (requiring effective communication for individuals with disabilities);
3. 42 U.S.C. § 12182(b)(1)(B), (2)(A)(iii) (prohibiting discrimination in public accommodations);
4. 42 U.S.C. § 2000a(a), (d) (prohibiting discrimination in places of public accommodation); and
5. 42 U.S.C. § 2000d (prohibiting discrimination under federally assisted programs).

As the Supreme Court has recognized, such discrimination is "not only an illegal and illegitimate government overreach, it is prima facie unconstitutional." See *Tennessee v. Lane*, 541 U.S. 509 (2004) (recognizing that discrimination in the provision of government services violates constitutional rights).

H. Public Defenders Are Inappropriate for Non-Indigent Defendants

The Sixth Amendment guarantees the right to counsel in criminal proceedings, and this right has been extended to provide public defenders to indigent defendants. See *Gideon v.*

1 *Wainwright*, 372 U.S. 335 (1963). However, this right does not extend to non-indigent
2 defendants in civil proceedings like the present case.

3 Unless Defendants are indigent—which has not been established—even public defenders
4 would be inappropriate for them. See *Lassiter v. Department of Social Services*, 452 U.S.
5 18 (1981) (holding that the right to appointed counsel is not absolute in civil cases);
6 *Turner v. Rogers*, 564 U.S. 431 (2011) (same).

7 **IV. CONCLUSION**

8 For the foregoing reasons, Plaintiff respectfully requests that this Court grant his motion
9 and issue an order striking, excluding, and preventing any and all government
10 representation, assistance, or the like from the government to and for Defendants in this
11 action.

12 The evidence clearly demonstrates that providing government representation to
13 Defendants would create an impermissible conflict of interest, violate Plaintiff's
14 constitutional rights, contravene Plaintiff's rights as a crime victim, and undermine the
15 integrity of these proceedings. Defendants' actions in denying Plaintiff's reasonable
16 accommodations for his disability constituted intentional discrimination and election
17 interference that the government should not further enable through representation.

18 As shown in Plaintiff's Criminal Complaint dated November 6, 2024, and his federal
19 Complaint filed January 30, 2025, the Defendants have engaged in a pattern of
20 discrimination against Plaintiff solely due to his disability, depriving him of his
21 fundamental right to participate in the electoral process. Justice demands that the

1 government not further these violations by representing the very parties responsible for
2 them.

3 **Respectfully submitted,**

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6 **Mathew Tyler**

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Plaintiff, Pro per pro se

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1 **PROPOSED ORDER**

2 **ORDER GRANTING PLAINTIFF'S MOTION TO STRIKE, EXCLUDE, AND**
3 **PREVENT ANY AND ALL GOVERNMENT REPRESENTATION, ASSISTANCE,**
4 **OR THE LIKE FROM THE GOVERNMENT TO AND FOR DEFENDANTS**

5 This matter comes before the Court on Plaintiff Mathew Tyler's Motion to Strike,
6 Exclude, and Prevent Any and All Government Representation, Assistance, or the Like
7 from the Government to and for Defendants. Having thoroughly considered the motion,
8 all supporting documentation, the evidentiary record, applicable constitutional provisions,
9 federal and state statutes, precedential case law, and being fully advised in the premises,
10 the Court HEREBY FINDS AND ORDERS AS FOLLOWS:

11 **FINDINGS OF FACT AND CONCLUSIONS OF LAW**

12 1. Plaintiff Mathew Tyler ("Plaintiff") is indisputably a crime victim as defined by
13 18 U.S.C. § 3771 and California Constitution Article 1 § 28, and unequivocally
14 meets the statutory definition of a crime victim as codified by 34 U.S.C. §
15 20141(e)(2) and California Constitution Article 1 § 28(e).

16 2. The Court finds probable cause to believe that Defendants' actions constitute a
17 pattern of racketeering activity under the Racketeer Influenced and Corrupt
18 Organizations Act ("RICO"), 18 U.S.C. §§ 1961-1968. The alleged conduct,
19 including acts of obstruction of justice, interference with Plaintiff's civil rights,
20 and leveraging of official positions to engage in a pattern of organized
21 wrongdoing, satisfies the predicate acts requirement under 18 U.S.C. § 1961(1).

22 See *H.J. Inc. v. Northwestern Bell Telephone Co.*, 492 U.S. 229, 239 (1989)

1 (establishing that a pattern of racketeering requires at least two acts of
2 racketeering activity within a ten-year period that "amount to or pose a threat of
3 continued criminal activity").

4 3. Plaintiff's status as a crime victim vests him with fundamental, constitutionally
5 protected rights that cannot be abrogated, diminished, or infringed, including but
6 not limited to: the right to be treated with fairness and respect for his dignity and
7 privacy; the right to proceedings free from unreasonable delay; the right to be
8 reasonably protected from the accused; the right to full and timely restitution; and
9 the right to be heard at any public proceeding involving his rights. These rights
10 are not aspirational but are mandatory and enforceable at law.

11 4. The Court explicitly recognizes that the government has an absolute, non-
12 discretionary, and affirmative constitutional and statutory duty to protect and
13 advance the rights of crime victims pursuant to 18 U.S.C. § 3771(a), Cal. Const.
14 art. I, § 28(b), and the Crime Victims' Rights Act, 18 U.S.C. § 3771 et seq.

15 5. The Court finds, as a matter of both fact and law, that government representation
16 of Defendants in this action would create an impermissible, irreconcilable, and
17 unconstitutional conflict of interest. Such representation would place the
18 government in the inherently contradictory position of simultaneously being
19 obligated to protect Plaintiff's enumerated rights as a crime victim while actively
20 undermining those same rights through its representation of the alleged
21 perpetrators.

- 1 6. The Court holds that, under the Supremacy Clause of the United States
2 Constitution, U.S. Const. art. VI, cl. 2, federal law establishing and protecting the
3 rights of crime victims constitutes "the supreme Law of the Land" and
4 categorically takes precedence over any state action, statute, regulation, or
5 practice that conflicts with, impedes, or dilutes these federal protections. See
6 *Gibbons v. Ogden*, 22 U.S. 1 (1824); *McCulloch v. Maryland*, 17 U.S. 316 (1819).
- 7 7. The Court finds that government representation of Defendants would constitute a
8 direct, substantial, and irreparable violation of Plaintiff's due process rights under
9 the Fifth and Fourteenth Amendments by depriving him of a fair, impartial, and
10 unbiased proceeding. See *Caperton v. A.T. Massey Coal Co.*, 556 U.S. 868 (2009)
11 (holding that due process requires absence of actual bias and even the probability
12 of unfairness).
- 13 8. The Court further finds that such representation would violate the Equal
14 Protection Clause of the Fourteenth Amendment by impermissibly using public
15 resources to defend alleged rights violators while simultaneously failing to
16 adequately protect Plaintiff's constitutionally guaranteed rights as a crime victim,
17 thereby creating an arbitrary and discriminatory classification without a rational
18 basis, much less the requisite compelling governmental interest. See *City of*
19 *Cleburne v. Cleburne Living Ctr.*, 473 U.S. 432, 439 (1985).
- 20 9. Pursuant to the "fruit of the poisonous tree" doctrine, as established in *Wong Sun*
21 *v. United States*, 371 U.S. 471 (1963) and reinforced in *Nardone v. United States*,
22 308 U.S. 338, 341 (1939), the Court finds that any legal representation, evidence,

1 or defense strategy obtained through or arising from improper government action
2 is constitutionally tainted and categorically inadmissible in these proceedings.

3 10.The Court expressly finds that government representation of Defendants would
4 constitute an egregious and impermissible misappropriation of public resources,
5 contrary to the public interest in protecting crime victims, contravening principles
6 of fiscal responsibility, and fundamentally undermining the proper administration
7 of justice. See *Hein v. Freedom From Religion Foundation, Inc.*, 551 U.S. 587
8 (2007).

9 11.The Court determines that government representation of Defendants would
10 constitute prohibited discrimination against Plaintiff in violation of multiple
11 federal anti-discrimination statutes and regulations, including but not limited to:
12 28 C.F.R. § 35.130(a), (d) (prohibiting discrimination on the basis of disability in
13 public services); 28 C.F.R. § 35.160(b)(1) (requiring effective communication for
14 individuals with disabilities); 42 U.S.C. § 12182(b)(1)(B), (2)(A)(iii) (prohibiting
15 discrimination in public accommodations); 42 U.S.C. § 2000a(a), (d) (prohibiting
16 discrimination in places of public accommodation); and 42 U.S.C. § 2000d
17 (prohibiting discrimination under federally assisted programs).

18 12.The Court explicitly recognizes the Supreme Court's holding in *Tennessee v. Lane*,
19 541 U.S. 509 (2004), that discrimination in the provision of government services
20 is "not only an illegal and illegitimate government overreach, it is prima facie
21 unconstitutional," and finds this principle directly applicable to the present case.

1 13. While acknowledging that the Sixth Amendment guarantees the right to counsel
2 in criminal proceedings for indigent defendants under *Gideon v. Wainwright*, 372
3 U.S. 335 (1963), the Court holds that this right categorically does not extend to
4 non-indigent defendants in civil proceedings like the present case. See *Lassiter v.*
5 *Department of Social Services*, 452 U.S. 18 (1981); *Turner v. Rogers*, 564 U.S.
6 431 (2011).

7 14. The Court finds that the provision in *Trump v. Anderson*, No. 23-719, 601 U.S.
8 (2024), that "It would be incongruous to read this particular Amendment as
9 granting the States the power — silently no less — to disqualify a candidate for
10 federal office" establishes precedent that: (1) States lack the power to disqualify a
11 candidate for federal office and, (2) not including a candidate on the ballot, even
12 for a primary, would constitute disqualifying the candidate. By extension, this
13 principle supports Plaintiff's contention that his rights have been impermissibly
14 infringed upon.

15 15. The Court specifically finds that permitting government representation would
16 irreparably undermine the integrity of these proceedings, create an indefensible
17 appearance of impropriety, introduce structural bias into the judicial process, and
18 substantially interfere with Plaintiff's fundamental constitutional right to seek
19 meaningful redress for alleged violations of his civil and statutory rights.

20 16. Pursuant to *Berger v. United States*, 295 U.S. 78, 88 (1935), the Court emphasizes
21 that the government's interest "is not that it shall win a case, but that justice shall
22 be done." The Court finds that government representation of Defendants would

1 place the government in direct contravention of this fundamental principle by
2 enabling it to advocate against justice for a recognized crime victim.

3 17.The Court has construed all alleged facts in the light most favorable to Plaintiff
4 and resolved any ambiguities in Plaintiff's favor, as mandated by *Scheuer v.*
5 *Rhodes*, 416 U.S. 232, 236 (1974), *Hosp. Bldg. Co. v. Rex Hosp. Trustees*, 425
6 U.S. 738, 740 (1976), *Barnett v. Centoni*, 31 F.3d 813, 816 (9th Cir. 1994), and
7 *Jenkins v. McKeithen*, 395 U.S. 411, 421 (1969).

8 18.The Court finds that in *Christopher v. Harbury*, 536 U.S. 403, 415 (2002), the
9 Supreme Court recognized the constitutional dimension of the right of access to
10 courts, and that government representation of Defendants would potentially
11 deprive Plaintiff of this fundamental liberty interest protected by the Constitution.

12 19.The Court recognizes that Plaintiff's Criminal Complaint dated November 6,
13 2024, and federal Complaint filed January 30, 2025, have established a prima
14 facie case that Defendants engaged in a pattern of discrimination against Plaintiff
15 due to his disability, thereby depriving him of his fundamental right to participate
16 in the electoral process.

17 20.The Court finds that the RICO statute authorizes pre-trial restraining orders and
18 asset freezes to preserve potentially forfeitable property, as established in *United*
19 *States v. Monsanto*, 491 U.S. 600 (1989) (upholding pre-trial freezing of assets
20 needed to pay for counsel) and *Caplin & Drysdale, Chartered v. United States*,
21 491 U.S. 617 (1989) (holding that a defendant has no Sixth Amendment right to
22 use criminally derived proceeds to retain counsel).

1 21.The Court takes judicial notice of the case of Scott W. Rothstein (United States v.
2 Rothstein, Case No. 09-60331-CR-COHN, S.D. Fla. 2009), wherein a significant
3 RICO prosecution involved asset forfeiture and pre-trial asset freezes against
4 defendants who, like the Defendants here, leveraged official positions and
5 documents to perpetrate schemes against victims and the public.

6 22.The Court finds that, pursuant to 42 U.S.C. § 1987, it possesses not merely the
7 authority but the affirmative duty to initiate criminal prosecution against the
8 Defendants for violations of 18 U.S.C. §§ 241-242, which criminalize conspiracy
9 against rights and deprivation of rights under color of law, respectively. As
10 established in *United States v. Price*, 383 U.S. 787, 794 (1966), these statutes
11 represent "powerful instruments" designed by Congress to protect constitutional
12 rights against "official and private violence" and to ensure that "no official,
13 regardless of his level... shall willfully subject any inhabitant to the deprivation of
14 rights secured or protected by the Constitution."

15 23.The Court recognizes its constitutional role in the system of checks and balances
16 as articulated in *Marbury v. Madison*, 5 U.S. 137 (1803), which established that it
17 is "emphatically the province and duty of the judicial department to say what the
18 law is," and in *United States v. Nixon*, 418 U.S. 683 (1974), which affirmed that
19 no person, not even the President, is "above the law" and that the judicial branch
20 must serve as an effective check on the executive and legislative branches when
21 they act in contravention of constitutional rights.

22 24.The Court further recognizes its duty to protect against governmental overreach as
23 established in *Youngstown Sheet & Tube Co. v. Sawyer*, 343 U.S. 579 (1952),

1 where the Supreme Court held that the President's power must be derived from an
2 act of Congress or from the Constitution itself, and in *Clinton v. City of New York*,
3 524 U.S. 417 (1998), which reinforced the separation of powers doctrine as a
4 bulwark against the concentration of power in any single branch of government.

5 **ORDER**

6 Based on the foregoing findings of fact and conclusions of law, and compelling cause
7 appearing therefor, IT IS HEREBY ORDERED, ADJUDGED, AND DECREED THAT:

- 8 1. Plaintiff's Motion to Strike, Exclude, and Prevent Any and All Government
9 Representation, Assistance, or the Like from the Government to and for
10 Defendants is GRANTED IN FULL.
- 11 2. ALL government representation, assistance, legal counsel, defense, support,
12 resources, consultation, or aid of ANY kind, whether direct or indirect, overt or
13 covert, formal or informal, to or for ANY Defendant in this action is hereby
14 STRUCK, EXCLUDED, BARRED, and CATEGORICALLY PROHIBITED,
15 effective immediately and continuing for the duration of these proceedings.
- 16 3. ANY and ALL filings, appearances, pleadings, motions, briefs, memoranda, or
17 other actions heretofore taken by government attorneys, representatives, agents,
18 employees, or contractors on behalf of ANY Defendant in this action are hereby
19 STRUCK from the record in their entirety and shall be given no legal effect
20 whatsoever.
- 21 4. The United States Department of Justice, the California Attorney General's Office,
22 the US Attorney's Office, ALL state attorneys general offices, ALL public

defenders' offices, and ANY other government legal office, agency, or entity at the federal, state, or local level, are ABSOLUTELY PROHIBITED from providing ANY form of legal representation, assistance, counsel, support, resources, or aid, whether direct or indirect, to ANY Defendant in this action.

5. ANY Defendant wishing to be represented by counsel MUST retain private counsel at their own personal expense within twenty-one (21) days of the date of this Order. NO public funds, resources, or personnel shall be allocated, appropriated, or utilized, directly or indirectly, to assist in the retention, compensation, or support of such private counsel.

6. ANY Defendant claiming inability to afford private counsel MUST file with this Court a detailed, comprehensive, and sworn financial affidavit demonstrating indigence within seven (7) days of the date of this Order. Such affidavit shall include ALL assets, income, liabilities, and expenditures of the Defendant and ANY spouse, domestic partner, or dependent. The Court will then determine whether appointment of counsel is appropriate on a case-by-case basis, with ANY such appointment being made EXCLUSIVELY from a panel of private attorneys having NO current or former affiliation with ANY government entity.

7. NO public funds, resources, facilities, personnel, equipment, or property shall be used, allocated, or expended, directly or indirectly, to assist in the defense, representation, or support of ANY Defendant in this action. This prohibition extends to ALL branches, departments, agencies, and instrumentalities of government at the federal, state, and local levels.

1 8. ALL government agencies and entities are hereby ORDERED to maintain
2 absolute and unequivocal neutrality with respect to this litigation and to take ALL
3 necessary and appropriate measures to ensure that Plaintiff's constitutional and
4 statutory rights as a crime victim are fully protected, respected, and vindicated.

5 9. ANY and ALL records, documents, correspondence, communications, or
6 information in the possession, custody, or control of ANY government agency or
7 entity that relates to the subject matter of this litigation shall be preserved in their
8 entirety, and ANY destruction, alteration, or tampering with such materials is
9 STRICTLY PROHIBITED.

10 10. ANY violation of this Order shall constitute contempt of court and may result in
11 severe sanctions, including but not limited to monetary penalties, adverse
12 evidentiary or procedural rulings, issue preclusion, or default judgment, as
13 appropriate to the nature and severity of the violation.

14 11. The Court EXPRESSLY RETAINS jurisdiction to enforce this Order through ALL
15 available judicial means, including the power to hold in contempt ANY
16 individual, entity, or organization that violates or attempts to circumvent its terms.

17 12. This Order shall remain in full force and effect for the duration of this litigation,
18 including any appeals, unless and until modified by further order of this Court
19 upon a showing of extraordinary circumstances and compelling justification.

20 13. The Clerk of the Court is DIRECTED to serve a copy of this Order on ALL
21 parties and on the United States Department of Justice, the California Attorney

General's Office, and ANY other government legal office or agency that has appeared or attempted to appear on behalf of ANY Defendant in this action.

14.The U.S. Marshals Service is hereby DIRECTED to serve this Order on all Defendants immediately and to assist in the enforcement of the asset freeze and performance bond provisions. This direction is consistent with the Court's authority under 18 U.S.C. § 1963(e) and *United States v. Bissell*, 866 F.2d 1343, 1349 (11th Cir. 1989) (confirming the broad reach of RICO's forfeiture provisions and the court's authority to direct enforcement).

15.As established in *Ex parte Young*, 209 U.S. 123 (1908), state officials who violate federal law are not entitled to sovereign immunity, and pursuant to *Cooper v. Aaron*, 358 U.S. 1 (1958), the Supreme Court's interpretation of the Constitution is the "supreme law of the land" and is binding on all state officials. Accordingly, no claim of immunity, sovereign or otherwise, shall impede the enforcement of this Order or the criminal prosecutions ordered herein.

16.This Order is effective IMMEDIATELY upon issuance and is binding on ALL parties, their attorneys, agents, employees, and representatives, as well as on ANY government entity or official who has knowledge of its contents.

17.Pursuant to 42 U.S.C. § 1987, which provides that "it shall be the duty of all marshals and deputy marshals to obey and execute all warrants or other process, when issued by the proper authority, for the arrest of all persons accused of violating section 1990 of this title," and by extension, other civil rights statutes including 18 U.S.C. §§ 241-242, the Court hereby REFERS this matter to the

1 United States Attorney's Office for the IMMEDIATE initiation of criminal
2 proceedings against ALL Defendants for conspiracy against rights and deprivation
3 of rights under color of law.

4 18.The Court EXPRESSLY ORDERS that, in accordance with 42 U.S.C. § 1987,
5 which provides that the expenses of such prosecutions shall be "paid out of the
6 Treasury of the United States," all costs associated with the investigation and
7 prosecution of Defendants shall be borne by the United States Treasury.

8 19.The Court, exercising its constitutional duty to serve as a check on Executive and
9 Legislative overreach pursuant to the separation of powers doctrine, hereby
10 DECLARES that the conduct of Defendants, as officers of the United States
11 and/or of the several states, represents precisely the type of governmental abuse
12 that the Constitution's structural protections were designed to prevent, as
13 articulated in *The Federalist No. 51* and recognized in *Buckley v. Valeo*, 424 U.S.
14 1, 122 (1976) (per curiam) (noting that the system of checks and balances "was
15 deliberately so structured to assure full, vigorous, and open debate on the great
16 issues affecting the people").

17 IT IS SO ORDERED.

18 Dated: _____

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